

# **Jagabattula Bala Kota Bhaskara Rao, vs The Andhra Pradesh State Legal Services ... on 11 November, 2020**

**Author: C.Praveen Kumar**

**Bench: C.Praveen Kumar, B Krishna Mohan**

THE HON'BLE SRI JUSTICE C.PRAVEEN KUMAR  
AND

THE HON'BLE SRI JUSTICE B.KRISHNA MOHAN

WRIT PETITION No.20910 of 2020

ORDER:

(per Hon'ble Sri Justice C.Praveen Kumar) The present Writ Petition came to be filed, under Article 226 of the Constitution of India, seeking issuance of Mandamus to set aside the award, dated 16.03.2002, passed in O.P.No.22 of 2002 in favour of the respondents 3 and 4 by the second respondent.

2. Heard the learned counsel for the petitioner and Sri S.Lakshmi Narayana Reddy, learned Standing Counsel appearing for the respondents 1 and 2, and with their consent, the present Writ Petition is being disposed of, through blue jeans app., at the admission stage.

3. The facts in brief are that, earlier, the third respondent married fourth respondent and later, on account of the disputes that developed between them, filed O.P.No.22 of 2002 seeking dissolution of the marriage by mutual consent. Basing on the understanding arrived at between both the parties i.e., the respondents 3 and 4 herein, their marriage was dissolved vide Award, dated 16.03.2002. It is averred that, suppressing the above facts, third respondent married the petitioner herein on 17.11.2005 as per the Hindu Rites and Customs and the marriage was registered before the Sub-

2 CPK,J & BKM,J Registrar, Eluru on 23.03.2006. It is also stated that out of their wedlock they were blessed with one male child and one female child. While things stood thus, disputes arose between them which led to filing of a criminal case i.e. Cr.No.567 of 2014 of the KPHB Police Station for the offence punishable under Section 498-A IPC and Sections 3 and 4 of the Dowry Prohibition Act, 1961. After completion of investigation, a charge sheet came to be filed which was taken on file as C.C.No.1834 of 2014 on file of the Court of the II Additional Junior Civil Judge-cum-X Additional Metropolitan Magistrate, Cyberabad, Kukatpally.

4. The averments in the affidavit also reveal that the third respondent along with her children filed D.V.C.No.40 of 2014 on the file of the Court of the XIX Metropolitan Magistrate, Kukatpally, Cyberabad claiming various reliefs. While the criminal case ended in an acquittal, ex parte orders came to be passed in D.V.C.No.40 of 2014 dismissing the case against the parents and sisters of the petitioner, while allowing the DVC against the third respondent therein i.e. the petitioner herein.

Thereafter, number of Criminal Miscellaneous Petitions came to be filed in D.V.C.No.40 of 2014 which are pending consideration.

5. The petitioner herein also filed C.C.No.4840 of 2018 on the file of the Court of the XIX Metropolitan Magistrate, Kukatpally at Miyapur against the third respondent and her 3 CPK,J & BKM,J parents for the offences punishable under Sections 495, 420 r/w Section 120 (B) of IPC and the same is pending. Petitioner herein also filed F.C.O.P.No.281 of 2019 on the file of the Court of the XXV Additional District Judge-cum-Additional Family Court, Kukatpally, Ranga Reddy District to declare the marriage of the petitioner and the third respondent, dated 17.11.2005, as void and dissolve the same which is also pending consideration.

6. While things stood thus, petitioner herein came to know that the marriage of the third respondent and the fourth respondent was suppressed and hence, he submitted an application to the second respondent on 06.01.2020 seeking information under the Right to Information Act, 2005. Basing on the said information, the present Writ Petition came to be filed questioning the award on the ground that the dissolution of marriage between the third respondent and fourth respondent is not valid under the provisions of Section 13-B of the Hindu Marriage Act, 1955, and a fraud has been played by the third respondent while marrying the petitioner herein.

7. Learned counsel for the petitioner would submit that, since the marriage between the third respondent and fourth respondent was not dissolved, in accordance with the provisions of the Hindu Marriage Act, the same is not valid in law and, consequently, the act of the third respondent, 4 CPK,J & BKM,J marrying the petitioner herein, also is void, hence, pleads to set aside the award, dated 16.03.2002, passed in O.P.No.22 of 2002.

8. Sri S.Lakshminarayana Reddy, learned Standing Counsel appearing for the respondents 1 and 2, opposed the same contending that the Writ Petition itself is not maintainable in view of the law laid down in the judgment reported in *Vadiga Amose v. Vadiga Anjaneyulu*<sup>1</sup>, wherein it has been held as under:

"11. An award passed under Section 21 of the Legal Services Authorities Act, 1987 is deemed to be a decree of civil Court. A decree obtained by playing fraud on the Court can be challenged by a third party to the suit by filing a suit for declaration. In order to avoid multiplicity of proceedings and to put an end to the litigation once for all, the best course open to the petitioner is to approach jurisdictional civil Court for redressal.

12. Having regard to the facts and circumstances of the case and the principle enunciated in the cases cited supra, we are of the considered view that the lis involved cannot be decided in a writ petition. However, the petitioner, if so advised, may approach the civil Court for appropriate relief as per law".

9. Having regard to the law laid down in the judgment referred to above and as seen from the record, it is clear that the third and fourth respondents filed O.P., seeking divorce by mutual consent

and, basing on the above, an award came to be passed by the Lok Adalat, Nellore, dissolving the marriage, pursuant to a compromise arrived at between both 2014 (2) ALD 676 5 CPK,J & BKM,J of them. This was in the year, 2002. The petitioner was not a party to the said proceedings nor was he an eye witness to the said proceedings. That being the position, we feel that the petitioner has no locus standi to question the award passed in O.P.No.22 of 2002. If the third respondent has cheated the petitioner by suppressing the divorce obtained before the Lok Adalat, it is always open for him to approach the appropriate criminal Court, which he has already done. Hence, we find no reason to grant any relief claimed.

10. Accordingly, Writ Petition is dismissed. There shall be no order as to costs.

As a sequel thereto, miscellaneous petitions, if any pending, in the Writ Petition, shall stand closed.

\_\_\_\_\_ C.PRAVEEN KUMAR,J \_\_\_\_\_  
B.KRISHNA MOHAN,J 11th November, 2020.

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